

25STCV36253 25STCV36253

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-21

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Case Number: 25STCV36253 Hearing Date: July 21, 2026 Dept: 517

The Court is sustaining with leave to amend Defendant's demurrer to Plaintiff's claim in its First Amended Complaint ("FAC") for an open book account. The Court agrees with Defendant that the allegations in the FAC are insufficient to establish an agreement for the creation of an open book account or the existence of a fiduciary obligation that would impose an open book account

The Court is overruling the Defendant's demurrer to Plaintiff's claim in the FAC a violation of the unfair competition law ("UCL") codified in section 17200 of the Business and Professions Code. Defendant's demurrer to the UCL claim rests on the proposition that the allegations in the FAC are insufficient to show that Plaintiff has suffered an injury to give it standing to pursue the claim. The Court disagrees with the Defendants. The allegations in the FAC that Defendant has refused to pay money owed to Plaintiff through an assignment of payment rights from third parties to the Plaintiff are sufficient to establish Plaintiff's standing to assert a UCL claim against the Defendant.

Plaintiff shall file and serve a Second Amended Complaint within 21 days of this order. The case management conference on calendar today is continued to November 18, 2026 at 8:30 a.m.